

25NWLC66131 25NWLC66131

County: los-angeles

Division: Civil Law and Motion

Department: Y

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25NWLC66131: CAPITAL ONE N.A. vs TYESHA JACKSON WISE

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Tyesha Jackson Wise ("Defendant"). The Court has also reviewed the initial opposition filed by Plaintiff Capital One, N.A. ("Plaintiff") regarding the lack of proper notice.

Defendant's Motion to Set Aside Default and Default Judgment ("Motion") was initially set for hearing by Defendant on June 26, 2026. The Court continued the hearing to July 15, 2026 so that proper notice of the Motion could be given to Plaintiff and to allow a substantive opposition to be filed by Plaintiff, if necessary. No substantive opposition has been filed by Plaintiff.

The Court notes that Request for Entry of Default was entered by the Clerk on April 27, 2026 and Default Judgment was entered by the Clerk on May 12, 2026.

Defendant's Motion was filed on June 3, 2026. In her motion, Defendant argues that she was not personally served with the summons and complaint; she did not receive substituted service, did not receive the summons and complaint by mail, and did not receive actual notice of the lawsuit in time to file a timely Answer.

The Court notes that Proof of Service of Summons by a registered process server by substituted service was filed with the Court on December 3, 2025 creating a presumption of service under Evidence Code section 647. The Proof of Service of Summons indicates substituted service on a "Jane Doe" at 815 N. La Brea Ave 83, Inglewood, CA 90302-2205. The Proof of Service describes the individual as an "employee" and indicates service was made at the "usual mailing address of the person to be service." The location served was not Defendant's residence, but appears to be a post office box.

Defendant's declaration, which was signed under penalty of perjury, states that she was not personally served with the summons and complaint; she did not receive substituted service; she did not receive the summons and complaint by mail; and she did not receive actual notice of the lawsuit in time to file a timely Answer. She states that she first learned of this lawsuit after receiving the Request for Entry of Judgment and Clerk's Judgment and she promptly filed this Motion.

Here, the Court finds that Defendant has rebutted the presumption of service and that there was no actual notice. "Actual notice," within the meaning of Code of Civil Procedure section 473.5, means genuine knowledge by the defendant, and has been strictly construed. Relief under the statute is liberally granted to defendants so that cases may be resolved on their merits. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547-548.

Pursuant to Code of Civil Procedure section 473.5, the Court GRANTS the Motion and vacates and sets aside the Default Judgment.

The Court grants Defendant 20 days leave to file a responsive pleading.

Clerk to give notice.